IN THE MATTER OF ARBITRATION
BEFORE THE SOLE ARBITRATOR
Justice (Retd.) S. K. Bhattacharya

ARBITRAL AWARD
(Made under Section 31 of the Arbitration and Conciliation Act, 1996)

In the matter between:

M/s Everest Engineering Works Private Limited,
having its registered office at 7, Park Street, Kolkata - 700016
... Claimant

And

M/s Ganga Constructions Limited,
having its registered office at 92, Salt Lake, Kolkata - 700091
... Respondent

Seat of arbitration: Kolkata Date of the award: 30/07/2024
Reference: Clause 22 of the Works Contract dated 14/05/2020

1. THE ARBITRAL PROCEEDINGS

The undersigned was appointed as the sole arbitrator by an order of the Hon'ble High Court at Calcutta dated 11/08/2022 passed in A.P. No. 402 of 2022 under Section 11 of the Arbitration and Conciliation Act, 1996. The Claimant filed its statement of claim on 04/10/2022 and the Respondent its statement of defence on 12/12/2022.

2. THE DISPUTE

The Claimant claims Rs. 3,42,00,000/- towards unpaid running account bills and Rs. 61,00,000/- towards idling charges arising out of the Respondent's failure to hand over the site.

3. FINDINGS

Having considered the pleadings, the documents marked C-1 to C-44 and R-1 to R-19, and the evidence of the witnesses, I hold that the Respondent committed a breach of clauses 8 and 11 of the contract and that the Claimant is entitled to payment of the certified running account bills. The claim for idling charges is partly allowed.

4. AWARD

I accordingly award as follows:

(a) The Respondent shall pay to the Claimant Rs. 3,42,00,000/- towards the unpaid running account bills.

(b) The Respondent shall pay Rs. 24,00,000/- towards idling charges.

(c) The Respondent shall pay interest at 9% per annum on the said sums from 01/04/2022 until the date of payment.

(d) The Respondent shall bear the costs of the arbitration quantified at Rs. 18,50,000/-.

The award is made and signed at Kolkata on this 30th day of July, 2024. Copies are delivered to the parties under Section 31(5).

Sole Arbitrator